

Resolve MUN 2026

United Nations Human Rights Council

Background Guide

Agenda: Promoting and protecting the enjoyment of human rights by seafarers.

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Letter from the Executive Board

Dear Delegates,

We are very pleased to welcome you to the simulation of the United Nations Human Rights Council (UNHRC) at Resolve MUN 2026. It will be an honour to serve on your Executive Board for the duration of the conference. This Background Guide is designed to give you an insight into the case at hand. Please refer to it carefully. Remember, a thorough understanding of the problem is the first step to solving it.

However, remember that this Background Guide is in **no way exhaustive and is only meant to provide you with enough background information to establish a platform for beginning the research**. Delegates are highly recommended to do a good amount of research beyond what is covered in the Guide. The guide cannot be used as proof during the committee proceedings under any circumstances.

Finally, we would like to wish you luck in your preparation. In case you have any questions, procedural or otherwise, please feel free to direct them to any member of the Executive Board, and we will get back to you as soon as possible. Please do not hesitate to contact us with any queries or concerns. We expect all delegates to be well-versed with the various nuances of the agenda and geared up for an intense debate, deliberations, and great fun.

We are looking forward to meeting you at the conference!

Regards,

Sai Preethi Polu

Chairperson

Dhanush Malhotra

Vice Chairperson

Abhinav Agarwal

Rapporteur

Points to Remember

A few aspects that delegates should keep in mind while preparing:

1. **Procedure:** The purpose of putting in procedural rules in any committee is to ensure a more organized and efficient debate. The committee will follow the UNA-USA Rules of Procedure. Although the Executive Board shall be fairly strict with the Rules of Procedure, the discussion of the agenda will be the main priority. So, delegates are advised not to restrict their statements due to hesitation regarding the procedure.
2. **Foreign Policy:** Following the foreign policy of one's country is the most important aspect of a Model UN Conference. This is what essentially differentiates a Model UN from other debating formats. To violate one's foreign policy without adequate reason is one of the worst mistakes a delegate can make.
3. **Role of the Executive Board:** The Executive Board is appointed to facilitate debate. The committee shall decide the direction and flow of the debate. The delegates are the ones who constitute the committee and hence must be uninhibited while presenting their opinions/stance on any issue. However, the Executive Board may put forward questions and/or ask for clarifications at all points in time to further debate and test participants.
4. **Nature of Source/Evidence:** This Background Guide is meant solely for research purposes and must not be cited as evidence to substantiate statements made during the conference. Evidence or proof for substantiating statements made during the formal debate is acceptable from the following sources:
 - i) **United Nations:** Documents and findings by the United Nations or any related UN body are held as credible proof to support a claim or argument. Multilateral Organizations: Documents from international organizations like OIC, NAFTA, SAARC, BRICS, EU, ASEAN, the International Criminal Court, etc. may also be presented as credible sources of information.
 - ii) **Government Reports:** These reports can be used in a similar way as the State Operated News Agencies reports and can, in all circumstances, be denied by another country.
 - iii) **News Sources:**
 - a. Reuters: Any Reuters article that clearly makes mention of the fact

or is in contradiction of the fact being stated by a delegate in the council.

- b. State operated News Agencies: These reports can be used in the support of or against the State that owns the News Agency. These reports, if credible or substantial enough, can be used in support of or against any country as such but in that situation, may be denied by any other country in the council. Some examples are – RIA Novosti (Russian Federation), Xinhua News Agency (People's Republic of China), etc.

******Please Note: Reports from NGOs working with UNESCO, UNICEF, and other UN bodies will be accepted. Under no circumstances will sources like Wikipedia, ChatGPT, or newspapers like the Guardian, Times of India, etc. be accepted. However, notwithstanding the criteria for acceptance of sources and evidence, delegates are still free to quote/cite from any source as they deem fit as a part of their statements.***

Committee and Mandate

The United Nations is built on three core pillars: human rights, peace and security, and development. Within the UN system, the Human Rights Council (UNHRC) serves as the principal intergovernmental body responsible for addressing human rights issues worldwide. It works alongside the Office of the High Commissioner for Human Rights and various treaty-monitoring bodies, all of which are headquartered in Geneva. The Council was established in response to concerns about the declining credibility and effectiveness of its predecessor, the Commission on Human Rights.

The UNHRC was formally created by the United Nations General Assembly through Resolution 60/251 on 15 March 2006. It replaced the Commission on Human Rights, which had existed since 1946. The resolution tasked the newly formed Council with reviewing existing human rights mechanisms and developing new methods of work. The establishment of the Council reflected a broader effort by UN Member States to strengthen the international human rights system and enhance its effectiveness.

A major milestone in the Council's development came in June 2007 with the adoption of Resolution 5/1, often referred to as the "Institution-Building Package." This resolution laid down the framework governing the Council's structure, agenda, procedures, and working methods. Most notably, it introduced the Universal Periodic Review (UPR), a mechanism through which the human rights records of all UN Member States are regularly examined. Alongside this, Resolution 5/2 established a code of conduct for Special Procedures mandate holders. In 2011, the Council's work and functioning underwent a formal review to further improve its effectiveness.

The Council is mandated to address situations involving human rights violations across the world, whether they concern specific countries or thematic issues such as discrimination, freedom of expression, torture, or the rights of women and children. It examines allegations of violations, adopts resolutions, issues recommendations, and provides a platform for dialogue among states, international organizations, and civil society. While its resolutions are not legally binding, they carry significant political and moral authority within the international community.

A key aspect of the UNHRC's mandate is the development and strengthening of international human rights standards. The Council creates and oversees mechanisms such as the Universal Periodic Review (UPR), Special Procedures, Fact-Finding Missions, and Commissions of Inquiry. Through these mechanisms, it monitors the human rights performance of all UN Member States, investigates violations, gathers evidence, and promotes accountability. The Council also contributes to the drafting of new human rights norms and legal instruments.

Beyond monitoring and standard-setting, the UNHRC is tasked with promoting international cooperation in human rights through technical assistance, capacity-building, and advisory

services. It works with governments, national human rights institutions, and civil society organizations to strengthen domestic human rights frameworks and help states fulfill their international obligations. Through dialogue, assistance, and oversight, the Council seeks not only to respond to violations but also to prevent them and foster a global culture of respect for human rights.

For further information about UNHRC:

<https://www.ohchr.org/en/about-us/mandate-un-human-rights>

<https://www.ohchr.org/en/hr-bodies/hrc/about-council>

https://www.ohchr.org/sites/default/files/Documents/HRBodies/HRCouncil/HRC_booklet_EN.pdf

Introduction

Seafarers

Seafarers are broadly defined as individuals who work aboard ships at sea, though the precise scope of the term varies across international frameworks. Under IMO Resolution A.930(22), a seafarer means any person who is employed or engaged in any capacity on board a seagoing ship. This was further affirmed in IMO Resolution MSC.255(84), which defines a seafarer as any person who is employed, engaged, or works in any capacity on board a ship. The IMO's framing is intentionally broad; it encompasses everyone from deck officers, engineers, and navigators to cooks, cleaners, and other support crew, regardless of rank or specialization. The Maritime Labour Convention (MLC) similarly defines a seafarer as any person who is employed, engaged, or works in any capacity on board a ship to which the Convention applies, typically covering merchant vessels engaged in commercial activities.

From a human rights perspective, the UN Human Rights Council (UNHRC) does not offer a stand-alone technical definition but frames seafarers as a distinct category of workers with heightened vulnerability and specific rights protections. The UNHRC, during its 56th Session in 2024, adopted its first-ever resolution recognizing the vital role seafarers play in society, the human rights risks they face at sea, and the urgency of strengthened collaboration among maritime stakeholders to promote and protect their rights, safety, and well-being. Resolution 56/18 recognizes the human rights and labour rights of seafarers, including the right to freedom of association, the elimination of forced or compulsory labour, a safe and secure workplace, fair terms of employment, decent working and living conditions on board ships, health protection, medical care, and welfare measures.

Taken together, both bodies converge on seafarers as a globally mobile, predominantly working-class workforce numbering nearly two million people, whose dedication and professionalism keep the vast majority of world trade moving, delivering vital goods including food, fuel, and medical supplies. The UNHRC has highlighted that seafarers face issues such as abandonment without food or wages, exploitation arising from flags of convenience, and a fragmented maritime legal framework that leaves them vulnerable. The IMO's technical definition thus establishes *who* seafarers are by their function on board, while the UNHRC's framing underscores *why* they deserve dedicated legal protection as workers operating in uniquely precarious and isolated conditions.

Human rights & seafarers

Seafarers' rights matter fundamentally because of the outsized role this workforce plays in sustaining global civilization. Seafarers transport 90% of the world's trade, and there is an urgent need for the entire shipping industry to tackle the systemic challenges that affect their rights. The importance of seafarers' rights is also deeply connected to broader principles of equality and non-discrimination. Women represent 2% of seafarers worldwide, and their numbers are growing, prompting the UNHRC to call on the maritime sector to institute policies preventing sexual harassment, assault, bullying, and discrimination on board vessels.

IMO Secretary-General Arsenio Dominguez has emphasized that Resolution 56/18 is a powerful affirmation that seafarers are the invisible force behind global trade, and that their rights and welfare must not be secondary. When seafarers lack meaningful recourse, are unable to report abuse for fear of losing contracts, are denied access to medical care, or are stranded without wages in foreign ports, it signals a systemic failure to extend universal human rights to one of the world's most vulnerable occupational groups.

The UNHRC's engagement with seafarers' rights marks a critical institutional shift, bringing the issue firmly into the mainstream of the international human rights system. Resolution 56/18, adopted on 11 July 2024, was co-sponsored by over 40 states and represents the first significant effort to address seafarers' human rights protections at the UN Human Rights Council level. The resolution acknowledges that ensuring safe and decent living and working conditions at sea, especially during crises, is a human rights imperative. Building on this momentum, the Philippines, which championed Resolution 56/18, has continued to work with the ILO and IMO to convert the Declaration's ideals into regulatory frameworks and enforcement protocols. At the same time, the Manila Declaration now serves as a guiding compass for collective global action, reaffirming that upholding seafarers' rights is not an option but a shared obligation.

Vulnerable Groups within the Maritime Workforce

Women Seafarers

Women represent approximately 1.2 percent of the global seafaring workforce, a figure that has grown only marginally in recent decades. Women seafarers face barriers at every stage of the employment cycle, including discriminatory hiring practices, lack of appropriately sized personal protective equipment, inadequate sanitary facilities, sexual harassment and assault at sea, and limited access to maternity protection. The CEDAW Committee and UN human rights treaty bodies have called on States to address discrimination in the maritime sector. MLC 2006 does not contain explicit provisions on gender equality, and this gap has been identified as a priority for future development of the instrument. The IMO's gender programme and the Women in Maritime Association (WIMA) work to address structural barriers but progress remains slow.

Migrant Seafarers

The global maritime workforce is composed overwhelmingly of migrant workers, with the Philippines, China, Indonesia, and the Russian Federation among the largest supplier States. Migrant seafarers are disproportionately employed as ratings rather than officers, face lower wages, and are more likely to be employed through complex crewing agency chains that obscure accountability for labour standards compliance. Many migrant seafarers from lower-income countries pay significant recruitment fees in violation of MLC 2006 Regulation 1.4, which prohibits the charging of recruitment fees to seafarers. Debt bondage resulting from recruitment fees is recognized as a risk factor for forced labour. The International Convention on the Protection of the Rights of All Migrant Workers and Members of Their Families has been ratified by relatively few major flag and port States, limiting its practical impact.

Human rights challenges faced by Seafarers

Seafarer Abandonment

Abandonment occurs when the shipowner fails to fulfil certain fundamental obligations to the seafarer relating to timely repatriation and payment of outstanding remuneration and to the provision of basic necessities of life, namely, adequate food, accommodation, and medical care. Abandonment will have occurred when the master of the ship has been left without any financial means in respect of ship operation.

Seafarer abandonment is far more than a labour dispute or contractual breach; it is a direct and multi-layered violation of fundamental human rights enshrined in international law. Under the MLC, a seafarer is considered abandoned when a shipowner fails to provide repatriation, leaves the crew without necessary support or maintenance, or stops paying contractual wages for at least two months. But the human rights dimensions cut much deeper. When seafarers are stranded without food, water, wages, or medical access, it engages their right to life and physical integrity under the International Covenant on Civil and Political Rights (ICCPR); their right to just and favourable conditions of work under the International Covenant on Economic, Social and Cultural Rights (ICESCR); and the prohibition on cruel, inhuman, or degrading treatment.

The UNHRC's landmark Resolution 56/18 (2024) directly addressed this, acknowledging that ensuring safe and decent living and working conditions at sea, especially during crisis situations, is a human rights imperative. Yet enforcement remains the critical gap: while flag states bear the primary obligation to oblige shipowners to repatriate seafarers, the flags of convenience system means many registries do not accept responsibility for those costs, and in cases where seafarers are abandoned within a territorial zone or port, coastal states could and should intervene to enforce human rights standards, but frequently do not.

The scale of the crisis underscores just how urgently these human rights protections must be operationalised. In 2024, the worst year on record, 3,133 seafarers were abandoned by shipowners across 312 vessels, a 136% increase from 2023, and in 2025, seafarers were collectively owed USD 25.8 million in unpaid wages, with Türkiye (61 cases) and the UAE (54 cases) the two countries where most abandonments took place. 82% of abandoned vessels in 2025 were flying Flags of Convenience, with these flags offering shipowners anonymity, deregulation, and immunity from scrutiny at the direct expense of seafarer rights.

A stark real-world illustration is the case of the Eleen Armonia: an Indian seafarer and three crew members were left aboard the vessel off the coast of Nigeria from June 2025 without pay; despite repeated appeals and the expiry of their contracts, the shipowner refused to repatriate them, with the seafarer stating, "Every month we've asked the company to pay our wages and send us home, but they don't care." Key related issues demanding attention include the Flags of Convenience system enabling impunity, weak port and flag state enforcement, the absence of mandatory

financial security instruments, the bars on flag-based discrimination in repatriation introduced under the 2025 MLC amendments, and the psychological toll, depression, anxiety, suicidal ideation, and the trauma of prolonged isolation, borne disproportionately by seafarers from developing nations who have the fewest alternative legal remedies.

Forced Labour, Modern Slavery at Sea, and Human Trafficking in Maritime Industries



Forced labour is defined by the ILO Forced Labour Convention No. 29 (1930) as any work or service exacted from a person under the threat of a penalty and for which the person has not offered themselves voluntarily. This definition is based on three key elements: the existence of work or service, the presence of a threat or penalty, and the absence of free and informed consent. While certain forms of compulsory work, such as military service, civic obligations, prison labour under public supervision, emergency work, and minor community services, are exempted under international law, these exceptions are strictly limited and must not be abused.

Forced labour, human trafficking, and modern slavery are closely connected but legally distinct concepts. Human trafficking, as defined by the UN Protocol to Prevent, Suppress and Punish Trafficking in Persons (2000), involves the recruitment, transportation, or harbouring of persons through coercion, deception, fraud, abuse of vulnerability, or similar means for the purpose of exploitation. Such exploitation may include forced labour, slavery, sexual exploitation, servitude, or organ removal. In practice, trafficking often serves as a pathway into forced labour and modern slavery.

The maritime sector is particularly vulnerable to these abuses. Seafarers and fishers often work in isolated environments, far from regulatory oversight and with limited access to complaint mechanisms. Many are recruited through intermediaries who make false promises regarding wages and working conditions. Once at sea, workers may face debt bondage, confiscation of identity documents, non-payment of wages, excessive working hours, physical abuse, and restrictions on their freedom of movement. These practices violate fundamental protections contained in the International Covenant on Civil and Political Rights (ICCPR), the International Covenant on Economic, Social and Cultural Rights (ICESCR), and ILO labour standards.

The scale of the problem remains alarming. According to the ILO's 2022 Global Estimates of Modern Slavery, approximately 50 million people were living in modern slavery in 2021, including 27.6 million victims of forced labour. The fishing and maritime industries are among the sectors at greatest risk. The ILO further estimates that at least 128,000 fishers are trapped in forced labour aboard fishing vessels worldwide, although the true figure is likely much higher due to underreporting and the hidden nature of abuse at sea.

One of the most well-documented examples is the Thai fishing industry crisis. In 2015, more than 2,000 migrant workers, primarily from Myanmar and Cambodia, were discovered on the Indonesian island of Benjina after being subjected to slave-like conditions aboard Thai fishing vessels. Investigations revealed widespread deception during recruitment, debt bondage, violence, and confinement at sea for months or even years. Workers were effectively trapped on vessels that transferred catches to larger "mother ships," allowing them to avoid port inspections. The case exposed significant gaps in labour enforcement and demonstrated how global seafood supply chains can facilitate exploitation.

The international response included Thailand's downgrade to Tier 3 in the United States' Trafficking in Persons Report and a European Union yellow card threatening sanctions on seafood imports. These measures highlighted that labour abuses at sea are not merely national issues but matters of international human rights, trade, and state responsibility. As slavery is prohibited under international law as a *jus cogens* norm, a peremptory principle from which no derogation is permitted, states have a legal and moral obligation to prevent forced labour, protect victims, prosecute perpetrators, and ensure decent working conditions for all seafarers. Despite significant legal frameworks, forced labour continues to persist due to poverty, discrimination, weak enforcement, and gaps in labour protection, making its eradication a continuing global challenge.

Unsafe Working Conditions & Safety of Life at Sea

Unsafe working conditions at sea are not merely occupational hazards but serious human rights concerns, engaging the right to life, health, and safe working conditions under the ICCPR and ICESCR. Seafarers frequently face excessive working hours, chronic fatigue, understaffing, commercial pressure to meet deadlines, and limited access to healthcare and complaint mechanisms. The Geneva Declaration on Human Rights at Sea reinforces that human rights apply equally at sea and on land, yet these protections are often inadequately enforced in the maritime sector.

The consequences of these failures are increasingly evident. According to Gard's 2025 Crew Claims Report, crew fatalities increased in 2024, with 83% of deaths linked to illness, often aggravated by stress and demanding working conditions. The report also found that suicides among seafarers exceeded fatal workplace accidents. Other studies reveal concerning levels of

depression, anxiety, and suicidal ideation among maritime workers, highlighting a growing mental health crisis that remains insufficiently addressed by the industry.

Many of these risks stem from systemic non-compliance with international safety standards. Research conducted by the World Maritime University found widespread falsification of rest-hour records and chronic understaffing aboard vessels. Commercial interests frequently take precedence over regulatory compliance, leading to fatigue-related errors, reduced situational awareness, and increased accident risks. Inadequate mental health support, weak enforcement mechanisms, and loopholes in safety regulations further contribute to an environment where seafarers' rights and wellbeing are often sacrificed for operational efficiency.

The 2015 sinking of the SS El Faro remains one of the clearest examples of how safety failures can become human rights tragedies. The cargo vessel sank during Hurricane Joaquin, resulting in the deaths of all 33 crew members. Investigations revealed multiple failures, including inadequate weather monitoring, poor bridge resource management, fatigue among officers, deficiencies in the company's safety management system, and reliance on outdated safety standards. The disaster exposed serious shortcomings in both corporate oversight and maritime regulation, demonstrating that failures to ensure safe working conditions at sea can ultimately result in the loss of life and the violation of fundamental human rights.

The SOLAS Convention, in its successive forms, is generally regarded as the most important of all international treaties concerning the safety of merchant ships. The first version was adopted in 1914, in response to the Titanic disaster, the second in 1929, the third in 1948, and the fourth in 1960.



Human Rights concerns due to Piracy

Under Article 101 of the United Nations Convention on the Law of the Sea (UNCLOS), piracy is defined as *any illegal act of violence, detention, or depredation committed for private ends by the crew or passengers of a private ship, directed on the high seas against another ship or against persons or property on board, as well as any voluntary participation in, or incitement of, such acts*. The definition contains four essential elements: the act must involve violence or depredation; it must be for private ends (excluding politically motivated acts like terrorism); it must follow the "two-ship rule" requiring one vessel to attack another; and it must occur on the high seas, beyond any state's territorial jurisdiction.

This geographic limitation gives rise to an important legal distinction, similar acts committed within a coastal state's internal or territorial waters are classified not as piracy but as *armed robbery against ships*, for which primary enforcement responsibility falls on the coastal state itself, with the 1988 SUA Convention and the 2000 UN Convention against Transnational Organized Crime providing the applicable legal framework in such cases. UNCLOS obliges all states to cooperate to the fullest extent in the repression of piracy and grants universal jurisdiction on the high seas to seize pirate vessels, arrest perpetrators, and seize property on board.

Piracy remains one of the most serious threats to seafarers, directly violating fundamental human rights, including the rights to life, liberty, security, and freedom from torture or cruel, inhuman, and degrading treatment under the ICCPR. Piratical attacks often involve hostage-taking, physical violence, arbitrary detention, and threats to life, causing severe human suffering while also disrupting global trade and maritime navigation. Despite this, international counter-piracy efforts have often focused more on prosecuting pirates than on protecting and supporting seafarer victims.

Recent trends indicate a worsening situation. In 2025, the International Maritime Bureau (IMB) recorded 137 piracy-related incidents, the highest number in five years, including 46 hostages, 25 kidnappings, and 42 incidents involving firearms. The IMB also warned of a resurgence of Somali piracy, while studies show that former hostages frequently suffer from long-term psychological consequences such as PTSD, depression, and trauma. Significant challenges remain, including weak prosecution mechanisms, state fragility in piracy-prone regions, and the lack of effective support systems for victims.

The hijacking of the MV Ruen in December 2023 illustrates these concerns. Somali pirates seized the vessel and held its crew hostage for more than three months before they were rescued by the Indian Navy in March 2024. During captivity, the ship was used as a "mothership" to facilitate further pirate operations, effectively turning the crew into tools of a criminal enterprise and subjecting them to arbitrary detention and degrading treatment.

The broader Somali piracy crisis demonstrates the scale of the human cost. During the height of piracy off the Horn of Africa, approximately 3,500 seafarers were taken hostage, with at least 62 deaths resulting from murder, suicide, malnutrition, and mistreatment. Reports also documented torture and the use of hostages as human shields. These realities highlight the need for a more human rights-centered approach to counter-piracy efforts—one that not only combats piracy but also prioritizes the protection, rehabilitation, and dignity of the seafarers who are its primary victims.

The General Assembly has also repeatedly encouraged States to cooperate to address piracy and armed robbery at sea in its resolutions on oceans and the law of the sea. For example, in its resolution 64/71 of 4 December 2009, the General Assembly recognized “*the crucial role of international cooperation at the global, regional, subregional and bilateral levels in combating, in accordance with international law, threats to maritime security, including piracy*”.

Criminalization and Arbitrary Detention of Seafarers

Seafarers are among the most vulnerable workers in the world and are frequently exposed to the risk of criminalization and arbitrary detention in foreign ports. Following maritime incidents such as collisions, groundings, or pollution events, seafarers are sometimes detained for prolonged periods without charge, denied access to consular assistance, or used as surety for claims against shipowners.

The IMO has long recognized that the criminalization of seafarers in cases where there is no clear evidence of criminal intent or negligence is a serious concern that undermines the rule of law and deters qualified personnel from entering the profession. The Maritime Labour Convention, 2006 (MLC 2006) and UNCLOS both contain provisions relevant to the fair treatment of seafarers in distress, and the IMO/ILO Guidelines on Fair Treatment of Seafarers in the Event of a Maritime Accident provide a key normative framework. Despite these instruments, implementation remains uneven across jurisdictions.

Access to Justice and Effective Remedies

Seafarers who are criminalized, arbitrarily detained, or subjected to abuse at sea often face significant obstacles in accessing justice. Language barriers, lack of legal representation, unfamiliarity with local legal systems, and the transient nature of maritime employment all contribute to this vulnerability. MLC 2006 Standard A4.5 requires that seafarers have access to an onboard complaints procedure and that flag States maintain shore-based mechanisms. However, these mechanisms are frequently inadequate or inaccessible in practice. The right to an effective remedy, enshrined in Article 2(3) of the ICCPR and reaffirmed in the UN Guiding Principles on Business and Human Rights, remains aspirational for many seafarers, particularly those employed through complex, multi-flag crewing structures.

Right to Health

Access to Healthcare

Seafarers detained or stranded in foreign ports frequently face barriers to accessing timely and adequate medical care. Flag State, port State, and shipowner obligations under MLC 2006 Regulation 4.1 require that seafarers be provided medical care comparable to that available to workers ashore. In practice, detained seafarers may be held in conditions where medical attention is withheld or delayed, particularly in jurisdictions with limited port welfare infrastructure. Access to healthcare in detention contexts intersects with broader obligations under international human rights law, including the right to the highest attainable standard of physical and mental health under Article 12 of the International Covenant on Economic, Social and Cultural Rights (ICESCR).

Mental Health and Psychological Well-being

Mental health is increasingly recognized as a critical component of seafarer welfare. The isolation, separation from family, demanding watch schedules, noise, vibration, and fear of piracy or extreme weather conditions collectively impose a substantial psychological burden on seafarers. The International Transport Workers' Federation (ITF) and the International Seafarers' Welfare and Assistance Network (ISWAN) have documented high rates of anxiety, depression, and suicidal ideation within the maritime workforce. Despite MLC 2006's general provisions on welfare, there is no dedicated binding instrument on seafarer mental health. The IMO and ILO have both called for greater attention to this issue, and the 2021 Manila Declaration on Seafarers highlighted mental health support as an urgent priority.

Extended periods at sea, combined with limited or expensive communications, erode seafarers' connections to family, friends, and community. Typical contract lengths of six to twelve months for ratings and officers can result in near-complete social isolation. This isolation is compounded when seafarers are denied shore leave in port, a right protected under MLC 2006 Regulation 2.4, but frequently restricted in practice due to security protocols, visa restrictions, and port facility limitations. Long-term isolation has documented negative effects on cognitive function, emotional regulation, and physical health, raising significant human rights concerns related to dignity and the right to family life.

Maritime Security and Human Rights

Piracy and Armed Robbery at Sea

Piracy and armed robbery against ships remain significant threats in several maritime regions, including the Gulf of Guinea, the Strait of Malacca, and, historically, off the coast of Somalia. Seafarers who fall into the hands of pirates are subjected to unlawful detention, physical violence, torture, and in some cases murder. The psychological effects of piracy attacks and captivity are severe and long-lasting, with documented cases of post-traumatic stress disorder, depression, and inability to return to sea. UNCLOS Article 100 obliges States to cooperate fully in the repression of piracy, and the IMO has developed extensive guidance on best management practices to reduce the risk of piracy attacks. However, compensation and rehabilitation for seafarer victims of piracy remain inadequate, and legal proceedings against pirates frequently fail to result in conviction.

Seafarers in Conflict Zones

Seafarers operating in or near conflict zones are exposed to risks including armed attack, seizure by State or non-State actors, use of vessels to transport contraband or combatants, and forced participation in activities contrary to their conscience. The Red Sea and Gulf of Aden have become particularly hazardous following the escalation of Houthi attacks on commercial shipping in 2023 and 2024. International humanitarian law offers some protection for civilian seafarers in armed conflict, but its application in non-international conflicts and hybrid maritime contexts is contested. Flag States have a duty under UNCLOS and general international law to protect their vessels and crews, but practical mechanisms for doing so in active conflict zones are limited.

Terrorism and Maritime Threats

Maritime terrorism, including the use of vessels as weapons or platforms for attack, poses direct threats to seafarers and port workers. The IMO's International Ship and Port Facility Security (ISPS) Code, adopted in 2002 following the September 11 attacks, imposes security obligations on ships and port facilities. While the ISPS Code has improved physical security, its implementation has had unintended consequences for seafarers, including restrictions on shore leave, increased surveillance, and the stigmatization of certain nationalities of seafarers. The balance between security imperatives and the human rights of seafarers requires ongoing attention.

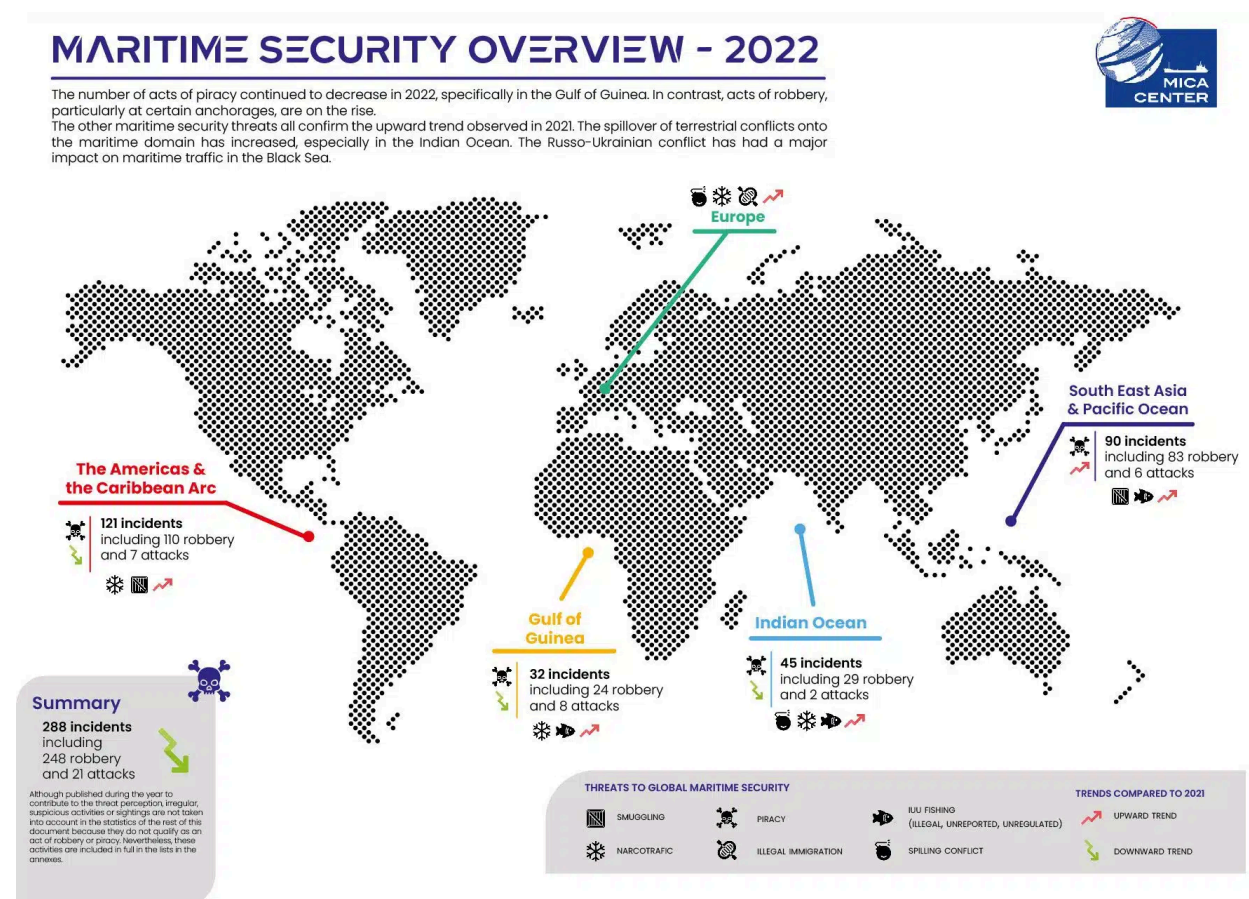
Protection of Seafarers During Armed Conflict

International humanitarian law, including the Geneva Conventions and their Additional Protocols, applies to seafarers and civilian vessels in situations of international armed conflict. Civilian seafarers are protected persons under international humanitarian law and may not be

directly targeted. In practice, however, seafarers aboard vessels in conflict zones are at significant risk, particularly in contexts of asymmetric warfare or where commercial shipping is used for strategic purposes. The 1988 SUA Convention (Convention for the Suppression of Unlawful Acts against the Safety of Maritime Navigation) provides additional protection, but its application in the context of inter-State armed conflict is limited.

Human Rights Implications of Maritime Sanctions

Maritime sanctions regimes, including those imposed by the UN Security Council, the United States, the European Union, and other actors, have significant human rights implications for seafarers. Seafarers aboard sanctioned vessels may find themselves unable to call at ports, obtain fuel or provisions, access banking services, or be repatriated. The expansion of secondary sanctions and broad jurisdictional claims by major economies has created a complex compliance environment in which seafarers and shipowners must operate. The chilling effect of sanctions on legitimate shipping can result in vessels being stranded and crews being effectively abandoned without the legal framework that normally applies to abandonment cases.



Case Studies and Recent Developments

Red Sea Shipping Crisis

From late 2023, Houthi attacks on commercial shipping in the Red Sea and Gulf of Aden caused a significant disruption to global maritime trade and created serious human rights concerns for seafarers. Vessels were struck by missiles and drones, several seafarers were killed or injured, and the crew of the Galaxy Leader cargo vessel was seized and held captive. The crisis led to widespread rerouting of vessels around the Cape of Good Hope, increased insurance premiums, and significant uncertainty for crews assigned to Red Sea transits. The IMO Maritime Safety Committee has addressed the situation, and the United Nations has called for the protection of civilian seafarers consistent with international humanitarian law. The crisis highlights the acute vulnerability of seafarers in geopolitical conflicts in which they have no agency.

COVID-19 Crew Change Crisis

The COVID-19 pandemic precipitated the largest crew change crisis in the history of modern shipping. At the peak of the disruption in 2020, approximately 400,000 seafarers were unable to be repatriated following the expiry of their contracts, while a further 400,000 were unable to join vessels. Seafarers served at sea for periods exceeding eighteen months in some documented cases, far beyond the twelve-month maximum permitted under MLC 2006. The crisis was driven by the closure of borders, suspension of international flights, refusal of port States to permit crew changes, and inconsistent national policies on seafarer visas and transit. Significant advocacy by the ITF, ICS, IMHA, and the UN Secretary-General eventually led to broader recognition of seafarers as key workers, though implementation of this designation remained inconsistent. The pandemic demonstrated the fragility of the international framework for seafarer welfare and the absence of effective mechanisms to enforce seafarers' rights in a systemic emergency.

Significant Maritime Human Rights Litigation

A number of significant legal cases in national and international forums have advanced the development of maritime human rights norms. These include cases before the International Tribunal for the Law of the Sea (ITLOS) concerning the prompt release of detained vessels and crews under UNCLOS Article 292; domestic tort and contract claims by seafarers against shipowners and manning agents for unpaid wages, unsafe working conditions, and failure to provide medical care; and cases before national courts concerning the liability of port States and flag States for failures of regulatory oversight. In the context of business and human rights, litigation under the US Alien Tort Statute and equivalent mechanisms in other jurisdictions has been used to seek remedies for severe labour abuses in maritime supply chains. The development of mandatory human rights due diligence legislation in France, Germany, Norway, and the European Union is likely to generate further litigation with implications for the maritime sector.

Links for further research

- [Seafarer abandonment](#)
- [What is forced labour? | International Labour Organization](#)
- [Forced labour and human trafficking in fisheries](#)
- [International Convention for the Safety of Life at Sea \(SOLAS\), 1974](#)
- [Piracy Under International Law](#)
- [Protecting seafarers against criminalization: what more can be done?](#)
- [Text and preparatory reports of the Maritime Labour Convention, 2006](#)
- [MLC, 2006: What it is and what it does | International Labour Organization](#)
- [IMO/ILO work on seafarer issues](#)
- [Guidelines on Fair Treatment of Seafarers detained in connection with alleged crimes adopted](#)
- [Supporting Seafarers: resources and general information](#)
- <https://seafarersrights.org/seafarers-subjects/fair-treatment/fair-treatment-guidelines/>
- [Seafarer abandonment](#)
- [ILO/IMO Joint Database on Abandonment of Seafarers](#)
- [ILO: 310 cases of seafarer abandonment in 2024 - SAFETY4SEA](#)
- [The long-term impact of maritime piracy on seafarers' behavioral health and work decisions - ScienceDirect](#)
- <https://www.ncbi.nlm.nih.gov/pmc/articles/PMC8817943/>
- [The Neptune Declaration on Seafarer Wellbeing and Crew Change](#)
- [What is the Neptune Declaration? | Royal Museums Greenwich](#)
- [Maritime Safety Committee - 108th session \(MSC 108\), 15-24 May 2024](#)
- [IMO condemns “illegal, unjustifiable” attacks on ships in Red Sea](#)
- [Survey highlights challenging conditions faced by migrant workers in Asia's fishing and seafood processing industries | International Labour Organization](#)
- [Following Forced Labor in the World's Fishing Fleets](#)